

9:00 11	24CV441131	Gray West Construction vs. Elks Lodge	Defendant petitions this court to compel plaintiff to respond to defendant's special interrogatories. Special Interrogatory Nos. 6 and 7 request identification of supporting documents to Plaintiff's damages claim. This court finds the request to be relevant and reasonable. Defendant's petition to compel as to Special Interrogatories 6 and 7 is GRANTED. Special Interrogatories Nos. 13, 14, and 15 seeks information to justify the damages sought by Plaintiff. This court agrees with the Defendant that Plaintiff's responses need to inform the Defendant of the actual defects alleged. Defendant's petition as to Special Interrogatories 13, 14, and 15 are GRANTED. Special Interrogatories 16, 17, 18 and 19 relate to misrepresentation and overcharge claims. Plaintiff's responses are not specific as to the fraud allegations. Defendant's petition as to Special Interrogatories 16, 17, 18 and 29 are GRANTED. Special Interrogatory No. 35 requests Plaintiff to identify proposed change order communications by bates range. This court finds the request to be relevant and reasonable. Defendant's petition as to Special Interrogatory No. 35 is GRANTED.
9:00 12	24CV449229	Andrew Little vs. Shuo Rong, et.al.	Defendant City of San Jose moves this Court to determine that the settlement entered into between the Plaintiff and the City was made in good faith under CCP 877 and 877.6(a)(1). Settlement was reached between the Plaintiff and the City regarding a traffic collision that occurred on November 8, 2023. Defendant filed no objection to this motion. Defendant's motion is GRANTED. Any current or future claim against the City of San Jose for equitable comparative contribution, partial or comparative indemnity, or comparable fault based reimbursement arising from the November 8, 2023 incident if ordered barred.
9:00 13	25CV467015	Dmitri Dolgov, et.al. vs. Jerry Kwok, et.al.	Plaintiff filed a petition to compel further responses to form and special interrogatories regarding Millenium Construction. Plaintiff's petition argues that Defendant failed properly identify photographs submitted in response to Form Interrogatory 311.1. Plaintiff's petition as to Form 311.1 is GRANTED. Plaintiff petitions this court to respond to a request for specific dates. Defendant argues that at all relevant times defendant was supervising work done. This answer does not appear to be sufficient. Plaintiff's petition as to further responses for Form 321.4 is GRANTED. Plaintiff petitions this court to compel Defendant for responses as to Special Interrogatories. This court agrees with Defendant that Plaintiff failed to submit a separate statement indicating individual interrogatories and responses and thus was not code compliant. Plaintiff's petition to compel further responses as to Special Interrogatories is DENIED. Monetary sanctions are DENIED. Plaintiff petitions this court to compel discovery of Pacific Realty. Plaintiff request contact information related to financial institutions used by Pacific Realty. Such information is not protected by a company's privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 70, 82, and 103 are GRANTED. This court finds that Defendant Pacific Realty's responses to Special Interrogatories Nos. 24-27 are sufficient. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 24-27 are DENIED. Defendant seeks leave to amend answer to change Defendants answer to Form Interrogatory 326.1, Request for Admission No. 8 from DENY to ADMIT. Defendant's petition is GRANTED. Plaintiff petitions this court to compel further response to Form Interrogatory 326.1, Request for Admission No. 9. Defendant fails to identify documents, provide contact information, or specific facts to support its answer. Plaintiff's petition to compel further discovery for Form Interrogatory 326.1, RFA No. 9 is GRANTED. Monetary sanctions are DENIED.

9:00 14	25CV479082	Ahead Magnetics vs IsenseCloud, Inc.	Defendant moves this court to quash Plaintiff's subpoena of documents and deposition. Defendant argues that Plaintiff's subpoenas are overbroad and premature. This court disagrees. The subpoenas issued by Plaintiff are relevant to the causes of action filed by Plaintiff and specifically restrict Plaintiff from receiving privileged documents. Defendant's motion to quash is DENIED. This court does find that Defendant did not act in bad faith in not responding to Plaintiff's subpoena. Plaintiff's request for sanctions is DENIED.
9:00 15	26CV486523	Imelda Ayala vs. Don Miguel Burrito	Defendant files a demurrer to Plaintiff's complaint. Plaintiff filed no opposition to Defendant's demurrer. In addition, Plaintiff's complaint is time barred and states no legal cause of action. Defendant's demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Calendar Lines 5-7

Case Name: *"Janine" Chun Lu v. Marc Goubert et al.*

Case No.: 23CV428070

Samuel and Serena Arvayo (the "Arvayo Defendants") demur to the first amended complaint ("FAC") filed by plaintiff "Janine" Chun Lu ("Lu"). The Arvayo Defendants have also brought a special motion to strike the FAC under Code of Civil Procedure section 425.16. Lu has filed a motion for summary judgment, or in the alternative, summary adjudication, as to the cross-complaint filed by Samuel, Serena, and Ezekiel Arvayo ("Cross-complainants").¹

I. THE ARVAYO DEFENDANTS' SPECIAL MOTION TO STRIKE

A. Request for Judicial Notice

The court GRANTS the Arvayo Defendants' request for judicial notice in support of their special motion to strike. (Request for Judicial Notice in Support of the Arvayo Defendants' Special Motion to Strike, Ex. A; Evid. Code, § 452, subd. (d).)

B. General Legal Standards

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations "arising from any act . . . in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This is commonly referred to as an "anti-SLAPP" motion.

¹ At various points, the court refers to Cross-complainants by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)